

4. **S-CV-0049982 Collins, David v. Hooked on Solar**

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Strike or Tax Costs

Defendants Hooked on Solar, Inc. and Ken Scriven move to strike costs in their entirety or, in the alternative, to tax costs specific costs. Plaintiff opposes the motion.

Preliminary Matters

While it is defendants Hooked on Solar, Inc. and Ken Scriven who filed this motion to strike or tax costs, as explained below, plaintiff is only the prevailing party as against Hooked on Solar, Inc. As plaintiff may not obtain an award of costs against defendant Scriven, there are no costs to tax as to this defendant and the motion is denied as to him. The court will reach the merits of the motion as to costs sought against defendant Hooked on Solar, Inc. only.

The court observes the motion to tax costs was untimely filed, as it was filed more than 15 days extended by electronic service after service of the costs memorandum. (Cal. Rules of Court, rule 3.1700(b)(1).) Plaintiff does not raise this argument in its opposition and there is no evidence the parties agreed to an extension. The court exercises its discretion to grant an extension pursuant to California Rule of Court, rule 3.1700(b)(3) so that the motion may be determined on the merits.

Ruling on the Motion

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) A “prevailing party” is defined to include “the party with a net monetary recovery.” (Code Civ. Proc., § 1032, subd. (a)(4).) Code of Civil Procedure section 1033.5 specifies allowable costs and prohibited costs. (Code Civ. Proc., § 1033.5, subds. (a) [allowable costs], (b) [disallowed costs].) Costs neither allowed nor disallowed “may be allowed or denied in the court’s discretion” provided they are “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subds. (c)(4), (c)(2)–(3).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (*Id.* at pp. 774–76.) When the reasonableness of particular items is challenged, conclusory allegations do not satisfy the objecting party’s burden. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) Here, as the jury found in favor of plaintiff as against defendant Hooked on Solar, Inc. on the whistleblower retaliation

cause of action and awarded damages of \$22,500, plaintiff is the prevailing party in this action and entitled to recover costs against defendant Hooked on Solar, Inc.

Defendant first argues that because plaintiff only prevailed on one of eleven of his claims and because he recovered damages less than the jurisdictional threshold for an unlimited civil case (Code Civ. Proc., §§ 85, 88), the court should strike all costs or, in the alternative, should tax costs incurred as a result of the failed claims. The court has the discretion to do so. (Code Civ. Proc., § 1033, subd. (a); *Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 990–91.) However, while plaintiff recovered on only one of his eleven claims, the jury award of \$22,500 is not de minimis and this case is sufficiently distinguished from *Chavez* to justify deviating from the *Chavez* court’s election to exercise its discretion to strike costs. This court declines to strike all costs or to tax costs in excess of what could have been incurred in a limited civil case. Instead, the court will review each challenged cost as to whether it is allowable and reasonable.

Filing and motion fees (\$426.16)

Defendant contends the filing fee should be limited to the filing fee for a limited civil case in light of plaintiff’s recovery. Filing and motion fees are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) These costs appear to be proper charges and the court declines to limit costs to what would have been permitted in a limited civil action. The motion to tax filing and motion fees is denied.

Deposition costs (\$11,942.85)

Defendant contends the deposition costs should be limited to the cost of one deposition as this is what would have been permitted in a limited civil case and that several depositions related to plaintiff’s failed claims and the related costs should be stricken. Defendant also contends the deposition costs relating to Summer Santiago as no deposition of such a person took place. Deposition costs are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Plaintiff concedes costs pertaining to Summer Santiago were mistakenly included in the costs memorandum and should be stricken in the amount of \$785. Otherwise, these costs appear to be proper charges and the court declines to limit costs to what would have been permitted in a limited civil action.

Service of process (\$369.80)

Defendant contends service of process costs as to a defendant who was dismissed and a defendant against whom plaintiff was unsuccessful at trial were not necessary and should be stricken. Service of process costs are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(4).) These costs appear to be proper charges and reasonably incurred despite the subsequent procedures pertaining to these individuals. The motion to strike is denied as to service of process costs.

Expert fees (\$17,433.22)

Expert costs are not allowable costs unless ordered by the court pursuant to Code of Civil Procedure section 1033.5(b)(1). A review of the court's file reveals plaintiff's experts were not court ordered. Plaintiff argues that Government Code section 12965(c)(6) authorizes the court to discretionarily award expert witness fees to a prevailing party in a FEHA action. While FEHA includes a retaliation claim in Government Code section 12940(h), reviewing plaintiff's complaint and the verdict form, the claim plaintiff prevailed on was brought under California's whistleblower statutes, Labor Code sections 1102.5 and 1102.6, and not under a FEHA retaliation claim under Government Code section 12940(h). These costs appear to be prohibited costs under Code of Civil Procedure section 1033.5(b)(1) are stricken in their entirety.

Court reporter fees as established by statute (\$8,000)

Defendant contends the court reporter fees are insufficiently supported. Plaintiff responds by arguing that transcripts prepared by a court reporter are only recoverable if ordered by the court pursuant to Code of Civil Procedure section 1033.5(b)(5) but that this was for the court reporter's presence in court. However, plaintiff fails to acknowledge that court reporter fees are recoverable when established by statute. (Code Civ. Proc., § 1033.5, subd. (a)(11).) Plaintiff does not cite to any statute supporting that court reporter fees are recoverable in this case. The motion to tax costs is granted in the amount of \$8,000.

Models, enlargements, and photocopies of exhibits (\$4,793.95)

"Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact." (Code Civ. Proc., § 1033.5, subd. (a)(13).) "[F]ees are not authorized for exhibits not used at trial." (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 775.) Defendant contends that because plaintiff only admitted 45 of the 113 exhibits he had prepared, costs should be stricken. Defendant properly objects to these costs and plaintiff falls short of showing which of these costs pertain to the 45 exhibits used at trial. As 45 of 113 trial exhibits is approximately 39% of the trial exhibits prepared, the court will tax these costs in a corresponding percentage, which means the court will tax costs in this category by \$2,924.31.

Fees for electronic filing or service (\$2,175.65)

Electronic filing and service fees are allowable costs "if a court requires or orders electronic filing or service of documents." (Code Civ. Proc., § 1033.5, subd. (a)(14).) Local Rule 10.27 requires eFiling. These costs appear proper and the motion to tax is denied as to this cost.

Other (\$2,024.36)

Counsel's lodging during trial are neither allowable nor prohibited, so they may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).)

Based on the foregoing, defendant Hooked on Solar, Inc.'s motion to strike costs in their entirety is denied and the motion to tax costs is granted in part. Costs are taxed in the amount of \$29,142.53. The motion is otherwise denied, and plaintiff is awarded costs against defendant Hooked on Solar, Inc. in the amount of \$20,695.

Motion for Attorneys' Fees

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves for an award of attorneys' fees in the amount of \$238,119.75 as against defendant Hooked on Solar, Inc. pursuant to Labor Code section 1102.5(j). Defendant opposes the motion.

Preliminarily, the notice of motion is brought pursuant to Government Code section 12965(b) and 42 U.S.C. section 1988 but the memorandum of points and authorities rely on Labor Code section 1102.5(j). As plaintiff did not prevail on a FEHA claim (for the reasons described in the above ruling on defendant's motion to tax costs) and 42 U.S.C. section 1988 does not appear to apply to this case, the court understands the motion to be brought pursuant to Labor Code section 1102.5(j) and will review it accordingly.

"The court is authorized to award reasonable attorneys' fees to a plaintiff who brings a successful action for a violation of these provisions." (Lab. Code, § 1102.5, subd. (j).) A "prevailing party" is defined to include "the party with a net monetary recovery." (Code Civ. Proc., § 1032, subd. (a)(4).) Here, as the jury found in favor of plaintiff as against defendant Hooked on Solar, Inc. on the whistleblower retaliation cause of action and awarded damages of \$22,500, plaintiff is the prevailing party in this action and is entitled to seek an award of reasonable attorneys' fees against defendant Hooked on Solar, Inc. pursuant to Labor Code section 1102.5(j). Defendant argues the attorneys' fees provision was added to Labor Code section 1102.5 while this case was already pending, citing to SB 497 (Cal. Stats. 2023, ch. 526). However, subdivision (j) was added to Labor Code section 1102.5 in 2020 by way of AB 1947, chaptered as Chapter 344, and became effective on January 1, 2021. (Cal. Stats. (2019–2020 Reg. Sess.), AB 1947, ch. 344, amending Lab. Code secs. 98.7 and 1102.5.) As the instant case was filed in 2023, this attorneys' fee provision has been part of Labor Code section 1102.5 during the entire pendency of this case.

The court must next address whether the request for \$238,119.75 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully considered the declarations of counsel Lyon, Exhibits 2 and 10 through 11 thereto. The declarations of Block, Collins, O’Hair, Hiller, and Miller are not signed under penalty of perjury as required by Code of Civil Procedure section 2015.5, which defendant appropriately raises in opposition to the motion. As this evidence is not submitted in an admissible form, the court disregards the declarations of Block, Collins, O’Hair, Hiller, and Miller, the exhibits thereto, and denies these requested fees. Plaintiff presents evidence that Lyon’s hourly rate is \$750, counsel Harmeling, IV’s hourly rate is \$675, Iesha-LaShay Phillips’ hourly rate is \$375, and several legal assistants’ hourly rate is \$90. The court finds the legal assistants’ rates to be reasonable. Otherwise, the court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is reasonable for counsel Lyon and counsel Harmeling, IV. While plaintiff presents evidence that Iesha-LaShay Phillips is a member of the New York State Bar and is presently supervised by attorneys who are members of the California State Bar, it does not appear that this individual is Barred in the State of California or participating in the California State Bar’s Provisional Licensure Program, nor does it appear any application for *pro hac vice* has been filed or granted. Given the state of the evidence, the court limits this individual’s reasonable rate to \$90 per hour as well.

Turning next to the question of whether the number of hours expended are reasonable, the court has carefully reviewed the declaration of counsel Lyon and Exhibit 2 thereto, the declaration of counsel Harmeling IV and Exhibit A thereto, the declaration of Jacob Foster and Exhibit A thereto, the declaration of Jace Jensen Jaworek and Exhibit A thereto, the declaration of James Morrison and Exhibit A thereto, the declaration of Stuart Wilson and Exhibit A thereto, and the declaration of Iesha-LaShay Phillips and Exhibit A thereto. The court finds these documents support 170.2 hours for counsel Lyon, 9.2 hours for counsel Harmeling IV, and 326.4 legal assistant hours for Foster, Jaworek, Morrison, Wilson, and Phillips. The court observes several instances where the work is insufficiently explained, where the work appears not reasonably necessary to prosecute the action, and instances where the work appears to be duplicative. With these observations in mind, the court determines a reduction of hours is necessary and finds 163.5 hours of attorney time and 221 hours of legal assistant time, including Iesha-LaShay Phillips, to be reasonable.

Plaintiff’s request for a multiplier is denied.

Costs are awarded, following defendant’s motion to strike or tax, in the amount provided in the court’s above ruling taxing in part plaintiff’s costs.

Accordingly, plaintiff’s motion is granted in part. Plaintiff is awarded attorneys’ fees in the reduced amount of \$93,510.